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File No.: EXP202105914

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 15/11/2021. The complaint is directed against RYANAIR D.A.C. with NIF N0072244G (hereinafter, the respondent). The reasons on which the complaint is based are as follows, according to the complainant:

The respondent initiated a disciplinary procedure against the complainant, considering that she had unjustified absences during working hours, taking her statement from "the person in charge of the Ryanair Base at Madrid/Barajas airport," an employee of RYANAIR residing in Madrid "(the highest authority at my workplace)" on 15/06/2021. "She interrogated me about my attendance at work, and all the situations of Temporary Disability or absence for health reasons that occurred in 2020 and 2021." "... I verbally communicated to the highest authority of Ryanair DAC in Madrid the health reasons related to my sick leave or incapacity, understanding that our meeting was confidential due to her being the highest authority at my workplace."

"On ***DATE.1, I received in my ***INTRANET.1 (company intranet) a letter signed by the ***POSITION.1 ("European responsible"), which contains confidential information about the reasons and medical grounds for my Temporary Disabilities. This implies that the person in charge in Madrid shared with the European responsible some absolutely confidential medical data, and furthermore, the European responsible was so irresponsible as to sign a written communication in which she used said confidential data that I have never disclosed to her and to which, therefore, she has no access."

The complainant states that: "This communication has been received by other workers from other bases of the Ryanair company; thus, I know that on ***DATE.1, from the base of ***LOCATION.1 (...) one of my colleagues warned me that he had received in his personal intranet the aforementioned letter with the employee code (***CODE.1) of the complainant and all the confidential health information it contains."

Along with the complaint, she provides:

- Screenshots of the conversation held between the complainant and a colleague on ***DATE.1, where they communicate through a chat, and he indicates that "he has received this," showing a screen with the logo of the respondent and the document, a letter-resolution, in English dated 28/07/2021, addressed to the complainant, stating "strictly private and confidential" on the right side and some Excel-type columns with dates, absences, and reasons, which are clearly visible.

- Later, on 6/08/2021, the complainant asks him to "send her the letter."

Continuing their conversation, the complainant tells her colleague that "it is enough with the screenshot from your ***INTRANET.1 where my letter with my name is visible," to which the other party responds, maintaining the following dialogue: "it is not in the ***INTRANET.1." - "Didn't they send it to you there?" - "It's the one I sent you here." - "Where did you receive it? By email? In your ***INTRANET.1?"

Because I have it in my ***INTRANET.1." - "Yes, but I'm in the read documents, it's not there." - "How strange, I didn't know they could delete already read documents. I still have it in my ***INTRANET.1, even though I have read it. Thanks anyway."

- A copy of the letter, "Dublin" 28/07/2021, signed by "****POSITION.1," addressed to the complainant, "Inflight Department-Ryanair DAC," stating: "Strictly private and confidential," "sent via ***APP.1." (matches the one contained in the screenshot).

In the body of the letter-resolution, it mentions among other aspects:

a) "I refer to the investigation meeting of 15/06/2021 as part of the disciplinary procedure of RYANAIR, mentioning the company person who conducted it, whose purpose was: "to discuss the general attendance records of the past 12 months."

b) The letter is illustrated with an Excel table of absence dates/types of absences and/or reasons, preceded by the wording: "In summary of the meeting, you have been absent from work a total of six

occasions as indicated below.” The table has three columns and rows.

The columns are titled:

- “Absence Dates,” covering specific dates or periods,

the first, from 17/06/2020 to 3/07/2020,

3/11/2020,

18/11/2020,

19/01/2021,

8 to 18/03/2021,

the last, from 1 to 3/06/2021,

- Next to the “absence dates,” the “type of absence” is noted, stating: “certified sick” (medical justification) on five of the dates/periods, and only in one case, the first, “medical certificate and unauthorized.”

- In the last column, “Reason,” stating “(…)” in three of the dates/periods, one with “(…)”, one with “(…)”, and one with “(…)”, which corresponds to “medical certificate and unauthorized,” which is the one from 17/06 to 30/07/2020.

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Review the following recorded absences:

1) In the meeting, the claimant was asked about periods, and the claimant's statements are reflected as follows:

- “From 11 to 30/07, her absence was not authorized because she did not provide an updated medical certificate. As a consequence, she is marked as unauthorized in her record. In the meeting on 15/06, she stated that the certificates were sent and should have been recorded as 'medical certificate.'

- “Regarding the absences in November 2020, 'you stated' that 'you started (...) that you had to do in several sessions.' It should be noted that, in the table, in November, there are two days: 3 and 18, both with 'medical justification' and reason '(...)’, or she is questioned about the 'absence' of 19 March (this date does not appear in the Excel table, only one from 19/01/2021, which is recorded with 'medical certificate') she responded that 'she was (...)’, this not being recorded in the 'reason' column.

When asked about the period 8-18/03/21, and from 1-3/06/21, (they appear as type of absence 'medical justification', you stated that you had a '(...)’ and then, referring to the second period, a '(...)’, thus recorded in the 'reason' column.

The letter concludes: “Having considered your responses, on this occasion, the benefit of the doubt is granted, and no actions will be taken,” reminding compliance with the company's policies and procedures, and that any matters related to your attendance will continue to be verified.

The claimant considers:

a) That the person who took her statement shared information with the “European responsible,” the person who signs the letter as “***POSITION.1 of the company, making use of confidential data that has never been disclosed to me, and to which she therefore lacks access,” a secret has been revealed. “The employer cannot be informed of the results of the medical tests of its workers, much less does the company representative have the right to disseminate them if they have been aware of them.”

b) “Such communication signed by ... has been received by other workers from other bases of the Ryanair company...”.

SECOND: Dated 13/01/2022, the referral of the complaint to the DPC is recorded, through the form “IMI; INTERNAL MARKET INFORMATION SYSTEM,” article 61 of the GDPR.

THIRD: Dated 17/01/2022, the claimant is informed of the “agreement of referral and provisional filing”:

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- “Considering the cross-border nature of the complaint and given that RYANAIR D.A.C. has its main or only establishment in Ireland, it is the data protection authority of that State that is to act as the main supervisory authority, pursuant to the provisions of article 56.1 of the GDPR.

- Therefore, in accordance with article 66 of Organic Law 3/2018, of 5/12, on Personal Data Protection and guarantee of digital rights, the Director of the Spanish Agency for Data Protection AGREES: FIRST: To refer the complaint submitted to the supervisory authority of Ireland, so that it may be processed accordingly.

SECOND: To proceed with the provisional filing of the procedure.”

On 17/03/2022, the claimant is informed that the DPC acknowledges receipt of the transfer and sends her the letter from that authority. In the letter, they inform her, among other circumstances, that if she has exchanged writings with the data controller and her documentation is not included, she must send it to the DPC for her complaint to progress in the assessment.

FOURTH: The claimant files a motion for reconsideration against the aforementioned provisional filing, on 02/02/2022, stating:

- Both the employee who took her statement, base supervisor in Madrid, and the one who signs the letter received on ***DATE.1, from Dublin, signed by the “***POSITION.1,” reside in Madrid “where they provide their labor services.”

- Two addresses of RYANAIR, one being her workplace address at the airport, another a corporate address in Girona, adding that the establishment responsible for labor relations for workers providing services in Spain is RYANAIR DAC OFFICE REPRESENTATION IN SPAIN, CIF, W0071513F, considering the competent supervisory authority to be the AEPD, not the Irish one.

She supports this thesis with the European Commission Regulation 8/2008 on common administrative procedures applicable to commercial air transport, which defines the bases, understood as the place of service provision, which is where the crew member starts and ends their shift, adding that the activity of a cabin crew member in the context of providing air transport services for passengers or goods is an activity carried out in the Member State where the base is located.

On 17/03/2022, the AEPD informs the claimant that the “Data Protection Commission” (DPC) confirms receipt of the complaint and that it has been forwarded for analysis, which will include determining whether the Irish authority is the main one or confirming that the complaint has a cross-border nature.

On 08/08/2022, the Director of the AEPD resolves to dismiss the appeal.

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FIFTH: On June 16, 2022, an entry was recorded regarding a document from the “Data Protection Commission” indicating that Article 56.2 of the GDPR is applicable, stating that it is a case of a local nature and must be processed by the AEPD, adding:

“1. Although Ryanair's main establishment is in Ireland, there is an establishment in Spain.

2. The case specifically concerns the personal data of a former employee of the Ryanair establishment in Spain (and the matter specifically refers to an office of RYANAIR located at Avenida de la Hispanidad s/n, C.P. 28042, Terminal 1 of Adolfo Suárez-Madrid Barajas Airport [and established at Calle Emili Grahit, nº 1-b and Postal Code 17002 of the Girona City Council], and the activities of a manager working at its Madrid supervisory base);

3. The processing in question appears to have a substantial effect on a data subject in a country (Spain), and the matters concerning the data subject are very specifically related to their previous employment as in the case of the Ryanair establishment in Spain.”

SIXTH: On September 23, 2022, the Director of the AEPD agreed:

“1. To admit for processing the complaint filed on November 15, 2021.”

The arguments of the DPC from June 16, 2022, are noted.

SEVENTH: A search was conducted in the Commercial Registry of the entity: “RYANAIR DAC

OFFICE REPRESENTATION SPAIN” both by name and with NIF W0071513F, with no annotation found. In the application “AXESOR monitoriza,” a report obtained on May 24, 2023, indicates it has been active since 2010, “other legal forms,” with the national classification code of economic activities (CNAE) “ancillary activities to air transport,” “airports and airfields.” No figures are noted regarding any aspect.

A search was also conducted in the Commercial Registry of the company RYANAIR DAC, and by NIF, with no data found.

The page

<https://es.marketscreener.com/cotizacion/accion/RYANAIR-HOLDINGS-PLC-1412410/empresa/> states that RYANAIR HOLDINGS PLC is an airline with 97 million passengers transported in 2020/21, and by the end of 2022, the group had a fleet of 500 aircraft, with 19,116 employees, and in sales from activity, RYANAIR DAC obtained 4.764 BILLION EUROS in 2022.

EIGHTH: On June 23, 2023, the Director of the AEPD agreed:

“TO INITIATE SANCTIONING PROCEDURE against RYANAIR DAC OFFICE REPRESENTATION SPAIN with CIF/NIF W0071513F, for the alleged infringement of the GDPR, articles:

- Article 5.1 c) of the GDPR, in accordance with Article 83.5.a) of the GDPR, classified for prescription purposes as very serious under Article 72.1.a) of the LOPDGDD.

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- Article 5.1.f) of the GDPR, in accordance with Article 83.5.a) of the GDPR, and for prescription purposes, classified as very serious, according to Article 72.1 a) of the LOPDGDD.

- Article 32 of the GDPR, in accordance with Article 83.4.a) of the GDPR, and for prescription purposes, classified as serious, according to Article 73.f) of the LOPDGDD.”

“For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanctions that may correspond, without prejudice to what results from the instruction, would be administrative fines with the following amounts:

- Article 5.1.c) of the GDPR, with an administrative fine of 60,000 euros.

- Article 5.1.f) of the GDPR, with an administrative fine of 25,000 euros.

- Article 32 of the GDPR, with an administrative fine of 10,000 euros.”

The initiation agreement was accepted on June 26, 2023, according to the certificate in the file.

NINTH: On July 17, 2023, allegations were received from the respondent, in which the statements bear the logo of RYANAIR, office in Dublin, Ireland, indicating:

1) It states that the complainant had numerous absences in 2021, and their “base supervisor” (SB hereinafter) sent an invitation to a meeting via email. The meeting was held on June 15, 2021, “the base supervisor and the complainant would have discussed the reason for these absences. In this context, the base supervisor would be the immediate supervisor of the complainant, responsible for preparing the shift list, but not for making disciplinary decisions.” “The written note of the meeting on June 15 would have been delivered by the base supervisor to ***POSITION.2 (***POSITION.2 hereinafter) who did have the authority to make disciplinary decisions for staff at various Ryanair bases, such as that of Madrid.”

The ***POSITION.2, Ms. B.B.B. “drafted a letter addressed to the complainant outlining the reasons for absence that the complainant had provided and the decision not to take any disciplinary action in this case.”

Since ***POSITION.2 was going on vacation, they provided the letter to another ***POSITION.2, C.C.C., (who performed the same functions as that one with the same authority to make disciplinary decisions regarding staff at other Ryanair bases) who agreed to intervene, “and uploaded the letter intended for the complainant into the system “***APP.1” on ***DATE.1.” “However, ***POSITION.2 accidentally selected the names of 50 employees as recipients of the letter, by mistakenly checking a box that marked all the “(...)” on that page. Mr. C.C.C. was informed of the error by another manager,

who was told by an employee who had received and consulted the letter. He immediately removed access to the letter the following morning, ***DATE.2, 17 hours after it was uploaded to "****APP.1."

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It states that "50 employees were recipients of the letter, but only 21 people saw it."

It provides DOCUMENT 1, which is an Excel list containing the names of the individuals to whom the letter was sent, those who accessed it, with a record of date and time, ranging from

***DATE.1

to

***DATE.2.

The first time recorded is 16:42 on ***DATE.1, and the last on ***DATE.2: 7:47. The rest of the individuals are listed as "the letter has not been opened," including the colleague of the complainant.

2) It continues to indicate that as the data protection officer of RYANAIR, "I was not aware of this breach until 17/11/2021, when the complainant raised the issue in the context of an investigation meeting with their Base Supervisor regarding new absences. I reported the breach to the DPC of Ireland on 19/11/2021."

It provides DOCUMENT 2, dated 19/11/2021, NOTIFYING A PERSONAL DATA BREACH TO THE DPC, including the form, from which the following points are noteworthy:

- RYANAIR DAC, address in Dublin, indicating it is responsible for data protection,
- It affects data subjects in more than one Member State, or relates to the processing of activities in more than one Member State.
- It concerns the processing of personal data that takes place in the context of activities of an establishment of a controller in the Union, but which substantially affects or is likely to substantially affect individuals in more than one Member State.
- The Member State in which individuals are substantially or probably substantially affected: Spain.
- It is questioned whether the DPC is competent to handle the notification, and it states that "Notifies on behalf of the data controller whose main or only establishment is located in Ireland."
- In the section asking to explain why it considers the organization to be the main establishment, including whether it is the headquarters in the EU and the place where decisions regarding the purposes and means of personal data processing are made, it responds that "the breach relates to the processing of cabin crew members of RYANAIR. All data of cabin crew members are controlled by RYANAIR DAC established in Ireland, being the location of the central administration headquarters in the EU and where decisions regarding the purposes and means of processing are made and under the control of RYANAIR DAC."
- In the section regarding whether it knows the date when the breach started, it indicates ***DATE.1, and when it ended, ***DATE.2.
- In response to the reason for notifying the breach to the DPC after 72 hours of becoming aware, it explains as reasons that on ***DATE.2, one of our Inflight Managers was notified by a person, a crew member who had...

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received a letter addressed to another person, also a crew member, through the internal communication platform "****APP.1". This was escalated to the person who had sent the letter to correct the error, which they did by removing the letter, but did not report the breach to the department or the DPD, being an oversight of the employee in recognizing their additional obligations under the

GDPR to escalate the matter, in accordance with RYANAIR's data breach notification procedure and GDPR training.

-In: "describe how the breach occurred", it states that they use an online internal portal called "****APP.1" which they access (...). All flight crew members must use it for work; it is used to send notes and bulletins that do not contain personal data. In some cases, it is used to send correspondence related to human resources matters. In this case, the interested party was involved in an investigation related to their attendance record. An investigation meeting on this matter was held on 15/06/2021 and on

***DATE.1

at 17:23 hours (Spanish time), a letter containing a summary of that meeting was sent to the interested party, including specific details of health reasons that justified their various absences. Instead of sending the letter solely to the interested party in "****APP.1", the letter was sent to another 50 Ryanair crew members. This occurred due to the "inadvertent highlighting of the names of the recipients on the first page of the cover by the employee who sent the letter." It indicates that of the 21 recipients who opened the letter, they were all extended flight cabin crew from 15 different Ryanair bases in Spain, Italy, the UK, Greece, and Portugal.

-It is also indicated that the affected party was contacted to explain what happened, and with the individuals who opened the letter to inform them of the error, although it states that "They would not have been able to print or forward the letter (unless they had taken a screenshot)."

-The employee who sent the letter has been reminded to verify recipients in all communications and to take care to review them before and after sending, as well as sending emails to the directors reminding them of this. They are also analyzing the possibility of optional password protection for certain documents in "****APP.1" and a pop-up notification.

The DPC acknowledged receipt on 23/11/2021, and subsequently closed the investigation into the breach on 2/02/2022 (reference number ***REFERENCE.1). It provides a DOCUMENT which consists of an email indicating that with the information provided and the actions that have been taken regarding the case submitted on 19/11/2021, it has concluded, reminding the importance of reviewing correspondence. Also that the authority reserves the power to reopen the case for re-examination or as part of an investigation that may end in corrective measures, and reminds the duty to implement appropriate technical and organizational measures to ensure data security.

3) It provides in its point 3 of allegations, a summary table of the dates related to the complaint, highlighting that to the claimant, the defendant communicated on 19/11/2021 information that RYANAIR had reported the personal data breach to the DPC, providing a copy of the submission of the same via "****APP.1" in documents 4 and 5. In the letter, it informs that the account of "****APP.1" was deleted on ***DATE.2, as well as that it also

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sent to other unwanted recipients and contacted the recipients to ask them not to share the same, and the transfer to the DPC.

Likewise, in document 6, a letter is sent to the complainant on 4/02/2022, informing them that additional security measures have been implemented and that the case has been closed by the Irish DPC, as well as their right to file a complaint with a supervisory authority.

- In section 4 of its allegations, titled: "Single Window for Cross-Border Processing under Article 56, paragraph 1," it states that the RYANAIR GROUP is headquartered in Dublin, and "RYANAIR DAC located in Ireland, in relation to the cross-border data processing activities is the main establishment, as it is the central administration location for the Group's data processing activities. It is also responsible for processing the personal data of employees and customers across the group." "I advise and support all entities of the Ryanair Group on compliance with data processing. The legal and HR functions of the group are also employed by RYANAIR DAC and located in Ireland. Since RYANAIR

DAC in Ireland is the main establishment of the Group for data processing purposes and RYANAIR DAC is responsible for the data processing of the employee and customer data processing activities of the Ryanair Group, which has designated the DPC as its main supervisory authority for cross-border processing activities in accordance with Article 56.1 and 6 of the GDPR, it establishes that the main supervisory authority will be the sole interlocutor for the cross-border processing carried out by the data controller, which in this case is RYANAIR DAC."

"the data processing subject to this complaint is Ryanair's process for communicating with employees regarding disciplinary matters, including absences, and the security measures of its internal communication system, "****APP.1". Decisions regarding disciplinary processes and workplace communication, and in general, regarding employee data are made by the DAC of Ryanair from Ireland, or reviewed and approved by it, and affect all Ryanair employees in the EU who use the system "****APP.1".

"The fact that the central administration for processing employee-related data is based in Ireland is evidenced by the fact that, after I was notified of this breach in November 2021, Ryanair decided to introduce changes to its workplace communication processes. These decisions were made by staff from the DAC of Ryanair in Ireland and applied throughout the group, affecting employees from multiple member states in which Ryanair operates. These corrective measures are described in more detail in sections (...).

"It is unclear how this complaint is not a cross-border matter when Ryanair already reported the underlying breach to the DPC on 19/11/2021, explaining the cross-border nature." The DPC did not question this position, and the investigation into this breach was subsequently closed by said authority on 2/02/2022 (although we note that the DPC reserves the right to reopen its examination of the case as part of an inquiry, investigation, or audit, or any other action that may lead to corrective measures).

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In the email sent by the DPC to Ryanair's DAC on 02/02/2022, recommendations were made to Ryanair. Following their instructions, Ryanair provided specific training.

"At no time did the complainant inform Ryanair that they had already filed a complaint with the AEPD, nor did they inform the AEPD of their communications with Ryanair."

"In terms of Article 56, paragraph 2, we do not agree that this complaint refers solely to an establishment in your Member State or substantially affects interested parties only in your Member State." "This complaint was filed against RYANAIR DAC, the employees involved are all employees of RYANAIR DAC, although based in different EU countries, the infringement was reported by RYANAIR DAC to the DPC, corrective measures were employed by RYANAIR DAC and affected all Ryanair employees, and if the DPC or the AEPD were to sanction Ryanair, it would be RYANAIR DAC that would have to comply with such sanctions, as only it can make changes to the processes and systems involved in this infringement and complaint."

"The Spanish Representation Office of Ryanair is not relevant to this infringement or complaint. This 'Representation Office' does not employ staff, nor does it have decision-making power or carry out activities related to the processing of employee data. It was created solely to meet the legal requirements of having a point of contact or 'Representation Office' for tax and labor matters, that is, it is just an address to receive notifications. Therefore, the Spanish Representation Office is not an establishment of Ryanair, as it does not carry out any activity (see the description of 'establishment' in recital 225) and this infringement and complaint refer to a single establishment, which is Ryanair DAC. It is also not accurate to say that only interested parties from Spain were affected. The violation, the response to the violation, and the report affected interested parties from more than one Member State, not just Spain. The violation resulted in several employees in multiple Member States being able to access the complainant's health information in a misdirected letter. The risk associated with the violation was not particular to Spain. It just happened that the interested party was Spanish. The use of the system '****APP.1' was the cause of the violation and the content of the letter was the basis of the

report, meaning that these issues could have occurred to a crew member from any EU country. If '***APP.1' were a system that was only used in Spain and the complaint referred to the content of a letter that was only necessary to comply with Spanish legislation, it could be said that the processing activities substantially affect interested parties only in Spain, but this is not the case. The changes that Ryanair introduced in its disciplinary communication processes and in the security measures of the system '***APP.1' (which are used by all cabin crew of Ryanair throughout the EU) were determined by employees of Ryanair DAC in Ireland. In fact, all decisions regarding the processing of employee and customer data are made by Data Protection, Legal, HR personnel, and other staff based in Ireland." It would be incongruous for such processes and systems to be subject to review and, ultimately, enforcement by the AEPD when the AEPD considered it a cross-border matter when it received it and sent it to the DPC, making the DPC the main supervisory authority for all cross-border processing matters.

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Ryanair. The DPC has already participated in a review of this matter as part of the infringement investigation and must be the "sole interlocutor" for such cross-border processing in accordance with Article 56, paragraph 6, of the GDPR.

- In point 5 of the allegations, it is stated that the continuation of the procedure and enforcement against RYANAIR DAC does not contain the guarantees indicated in Article 58.4 of the GDPR. It would be unfair and inappropriate for a different supervisory authority to rule and attempt to enforce the same pattern of facts against RYANAIR DAC that was the subject of a prior infringement investigation by the DPC as the lead supervisory authority. This would undermine the objective of the "one-stop shop" procedure in Article 56 of the GDPR, the right to procedural guarantees in Article 58.4, and the principle of "non bis in idem."

"Throughout the process, there has been a lack of disclosure, and RYANAIR has been unable to demonstrate its position."

It is estimated that when on 16/06/2022, the DPC notified the AEPD that it "declined to review the complaint on the basis that it was a local case, and did not have full knowledge of the matter," it did so without having a good understanding of the circumstances of the complaint, nor taking into account factors that demonstrate that it is a cross-border complaint.

They state that: "We have contacted the DPC to explain the situation and have asked it to review its previous decision that this complaint is an exclusively local matter. A copy of this letter has been sent to the DPC."

If a sanction were imposed on RYANAIR, it would violate the principle of non bis in idem, based on Article 25 of the Spanish Constitution, and Article 50 of the Charter of Fundamental Rights of the EU, since "when a competent supervisory authority has investigated certain facts and has decided not to impose a sanction, it is not possible for another authority to sanction the same person for the same facts, and even to be subject to a second sanctioning procedure after not having been sanctioned in the first."

They further argue that the imposition of two separate fines of 10,000 and 25,000 euros for the same infringement of Articles 5.1f) and 32 of the GDPR in relation to the technical and organizational measures of '***APP.1' constitutes a breach of the principle of "non bis in idem."

- In point 6 of their allegations, it is indicated that "They do not agree that the principles of data minimization have been violated when the Director of the European base (***POSITION.2) included sensitive health data provided by the complainant in a letter addressed to him, as this information served as a record of the complainant's response to unexplained absences, functioned as the basis for the decision made, and was limited to what was necessary for the specific purpose, when the decision-making body of the matter was ***POSITION.2, so sharing the information was necessary to evaluate whether the complainant had valid reasons that could justify the absences and determine whether any disciplinary action should be taken or not. They also oppose the assertion that "the same

purpose reached in the letter could have been obtained without collecting the aforementioned health data," and that "it would not have been necessary to incorporate the data and information provided by the complainant in the interview." "It was necessary for the Director of the European Base to understand the detailed health information provided by the complainant to the Supervisor of the Base as an explanation for their absences. It was also necessary and...

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It is pertinent that this health information was included in the letter to the claimant, so that the letter would be a "narrative of the facts" that would allow the claimant to fully understand the basis of the decision.

- "RYANAIR does not have collective agreements, relying on its own internal disciplinary procedures to address unauthorized absences." "The disciplinary procedure requires that, before taking any action, an investigation phase be carried out, with one or more meetings in which the employee can explain their version of the facts and present any relevant information."

4- It does not agree that technical and organizational measures have been breached, as the security measures of "****APP.1" were adequate to the risk of processing at that time. The communication system "****APP.1" is a secure channel, and the letter was sent without the option to print it.

The incident occurred when "the names of the recipients were accidentally highlighted, all with surnames starting with the letter A." After the incident, a "pop-up was introduced to notify senders that a document is being sent to multiple recipients, in order to reduce the likelihood of this type of breach occurring again."

- As corrective measures in point 6.14, it states:

☐ Contacting employees who received the letter by mistake to inform them of the error, and that they must maintain confidentiality.

☐ Contacting the managers of European bases to remind them of the importance of notifying the responsible party of any data breaches.

☐ Organizing training with regional and European base managers on the importance of safeguarding sensitive employee information.

☐ Introducing warnings before sending a communication.

☐ Communication with the claimant.

☐ After the breach, and upon receiving additional information, RYANAIR also reviewed its processes for including detailed information in outcome letters to all employees regarding disciplinary matters.

Although Ryanair maintains that such information allows the employee to challenge any disciplinary decision, it was considered that the detailed information regarding the basis of the decision would be retained in a file note that the employee could request if they wished to contest the outcome letter. In contrast, the letter sent to the employee would only contain the details of the sanction imposed, including a warning.

- In point 7, it argues about the amount of the fines, considering that the imposition of a fine of 95,000 euros is unjust and disproportionate, contrary to Article 83 of the GDPR, as no mitigating factors were taken into account.

It specifies that the application of Article 83.2.a) of the GDPR as an aggravating factor would not be appropriate, but should be taken as a mitigating factor, since "there was only one affected party who did not raise the complaint internally until more than three months after becoming aware of the breach, even after having filed a complaint with the AEPD."

Neither is the application of Article 83.2.b) of the GDPR appropriate, as it was an isolated human error, which was corrected within 17 hours, and was addressed by modifying processes. They do not agree that "lack of diligence" should be an aggravating factor, as the tool "****APP.1" is secure, being an isolated error.

The measures taken to mitigate the damages suffered by the claimant, the withdrawal of the letter, "and communications to unintended recipients, whose details have been disclosed," have not been

taken into account.

They have no prior infringements.

They cooperated with the DPC regarding the reported breach and "corrective measures were taken immediately, even before we received a response from the DPC."

They do not agree with the aggravating factor of Article 83.2.g) of the GDPR, although they acknowledge that health data was contained, the references are to work absences "and indirect and generic mentions of health-related situations provided to Ryanair by the claimant during the investigation." The inclusion of that data aimed to "benefit employees during the investigation, allowing for the identification of specific information on which a decision is made." As a result, the content of similar letters has been varied.

They request the application of the mitigating factor of 83.2.h), as soon as RYANAIR became aware, it communicated this to the DPC.

Finally, they request to be covered by 83.2.k) of the GDPR due to "the absence of economic benefits as a consequence of the alleged infringements."

Additionally, they request that the complaint be referred to the DPC, suspending the procedure as the DPC is the main supervisory authority competent to examine the complaint.

They request as evidence to direct a request to the DPC to confirm whether it conducted an investigation and has already made any decision under the assigned reference ***REFERENCE.1, and if so, whether the DPC decided not to impose any sanction on RYANAIR.

TENTH: On 5/03/2024, "it is agreed to open a period for the practice of evidence, as provided in Articles 77 and 78 of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP)," practicing the following:

1. The complaint filed by the claimant and its documentation, the documents obtained and generated during the admission phase of the complaint, which are part of the procedure AT/03900/2022, are reproduced for evidentiary purposes.

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2. Likewise, for evidentiary purposes, the allegations regarding the initiation of the referenced sanctioning procedure, presented by RYANAIR DAC OFFICE REPRESENTATION SPAIN, and the accompanying documentation are hereby reproduced.

Additionally, the respondent is requested to provide:

3. A copy of the letter that the respondent sent to the claimant to attend the appointment on 15/06/2021.

After obtaining an extension to respond, the respondent stated on 9/04/2024, that document 1 is provided, a screenshot from internal systems, without the literal text of the summons, merely a computer note regarding the scheduling of the meeting.

4. A copy of the list of questions posed by the Base Supervisor (the professional category held and functions in the entity) and the responses provided by the claimant, which were recorded in the document that was later forwarded to the ***POSITION.2 (the designation of the position or category held by this person and functions in the entity).

Document 2 is provided, which includes a table of absence records for the last twelve months /43 days, 6 occasions/, and another table of absence dates/type of absence/reason provided, from 17/06/2020 to 3/06/2021, which matches in form and content with that sent to the claimant subject to this complaint. Another table breaks down in detail by day, covering the same period, with all absences supported by a medical certificate, except for those from 11 to 30/07/2020, and in this one, no reason is provided.

In the transcription of the questions, which is also attached, it begins by indicating that the reason for the meeting is to review the attendance in the last 12 months, stating that the claimant has been "absent from work on six occasions" "and that all have been justified, except one that is noted as unauthorized, referring to the period from 17/06 to 30/07/2020," to which the claimant responds that

they should be justified and that they were in contact with human resources, and they should be changed, and that they will contact human resources again.

Then, the interviewer tells them that on 3/11/2020, there is a record of illness, and it was justified, and asks if they remember what happened, to which the claimant responds that "I started a (...) that I should have done in several sessions and that day was the first." The same question is asked about two other dates, with the claimant responding that they were the second and third sessions, although in November 2020, only the 3rd and 18th of November 2020 are recorded.

In the same vein, there is a record of illness and it was justified, and they are asked about the absence on 19/01/2021, to which the response is "I was (...) I think like (...)", and they are also asked about the justified illness absences on 18/03/2021, responding that they had a (...), and for the absences from 1 to 3/06/2021, they responded that they had (...) and a (...).

The instructor notes that all of them were recorded as "justified."

It concludes by stating that "The notes taken will be sent to your EBM and to your 'agency personnel officer,' who may request or invite you 'to DUB' for a meeting. 'You will be notified in writing.'"

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The respondent indicates that the Base Supervisor in Madrid who conducted the interview conveyed the content of the meeting to the ***POSITION.

5- In the applicable disciplinary procedure, and in this specific case, for time control, with review of justifications for illness, inform who has approved the procedure, and who applies and manages it, also with reference to the category of personnel, and to which entity they belong. Also inform if it is applicable to any cabin crew personnel, and in which countries, or from which bases this personnel depends. Provide a copy of the procedure.

Indicate and provide the part in which the taking of statements is foreseen or enabled to inquire about matters of medical data with the possibility of such questions being made by the immediate base supervisor, and where it is foreseen that the data collection will then be transferred to the European Base Management that makes the decision.

Specification of the prior information given to the declaring worker, both in the preliminary investigation phase and for the disciplinary procedure regarding data collection and the rights that assist them.

On this matter, the respondent provides DOCUMENT 3, consisting of a copy of the "Internal Regulation of the Disciplinary Procedure" (RIPD) of RYANAIR, which they state develops "the provisions in the matter included in the 'RYANAIR WORK GUIDE', a set of provisions in general regarding the employment relationship of RYANAIR employees with the company (excerpt provided in DOCUMENT 4) that includes a series of general provisions regarding the employment relationship of RYANAIR employees with the company. In said document 4, there is a section titled: "FACTSHEET 3 ABSENCES FROM WORK" in which it is important to highlight:

- The "absence record" is mentioned, and a procedure is established for when an unavoidable absence occurs, whose main obligation is to notify when one cannot attend due to illness, injury, or any other reason that is not a leave, etc., "as soon as they become aware," and "at least two hours before the start of their workday or shift."

"Failing to notify the company by phone of their absence in this manner will result in the absence being classified as unauthorized or unreported."

"If the Company considers the reason for the absence unacceptable, it will be classified and recorded as unauthorized."

"They must submit a self-certification form in writing available on the company's intranet site and a medical certificate, if applicable, on the first day of their absence, unless they are bedridden. These certificates must indicate the nature of their illness and their expected return date to work..."

They state that the RIPD is included as an annex in this "Work Guide," which, in addition:

- Was approved by the company management and is applied by the Directors and Heads of the corresponding Department, for example, the "Inflight" Department regarding C/ Jorge Juan, 6
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cabin crew personnel, and the "Flight Operations" department regarding pilots. This, together with the Human Resources department of RYANAIR.

- Among the disciplinary offenses contemplated are attendance violations and unauthorized absences or leaves.

- "The disciplinary procedure requires that before taking any action, an investigation phase occurs with one or more meetings in which the affected person is summoned to explain their version of the facts and present any relevant information. In these meetings, their immediate supervisor or director attends, and a member of the personnel department may also attend, including a colleague or union representative designated by the affected person."

- It also specifies who the competent authorities within Ryanair are to resolve and impose the various sanctions if a violation or offense at work is confirmed; for example, it specifies what sanctions can be imposed by the immediate superior, the employee's supervisor, or the Director or Head of the Department.

- "At the time of the events, the disciplinary procedure regulation applied to all cabin crew personnel of RYANAIR and its pilots, regardless of the country where their base was located. That is, it applied - and applies - not only to the cabin crew personnel of RYANAIR based in Spain but in all RYANAIR bases (about 84), located in 33 countries, such as Ireland, Spain, Italy, Portugal, Greece, the United Kingdom, Poland, Belgium, or Morocco, among others."

Access is granted to verify DOCUMENT 3, a copy of the "Internal Regulation of the Disciplinary Procedure" (RIPD) of RYANAIR, and it is noted that the disciplinary process "may" include one or more investigation meetings with their "supervisor or immediate director" in which an attempt will be made to establish the facts of the case. "You are encouraged to have a colleague attend these meetings with you."

Among the offenses that may be sanctioned are: absence, unauthorized leave/absence.

It states that: "The employee finds complete information about the aforementioned disciplinary regime and its regulation through the 'Ryanair Work Guide.' Specifically, they can find the purpose of the meetings, the possibility of being accompanied by a colleague and union representative, the violations and possible sanctions, as well as the right to appeal the sanction.

- It states that "the Claimant was subject to said disciplinary procedure regulation, as expressly stated in their employment contract," providing a copy of DOCUMENT No. 5, which, within their employment contract, contains the transcription of the previously mentioned document "absences from work," noting that clause 14.2 is also included, which states:

"Assuming the costs, the company shall have the right to require you to be examined by an independent medical professional of the company's choice at any time (whether you are absent due to illness or injury, or not) and you agree that the

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The medical professional conducting the examination shall confirm to the company whether the employee is fit to return to work, in accordance with Spanish legislation." Also, in the employment contract, section 32 contains information about the disciplinary procedure.

The respondent states that the contract contains different clauses, one of which is clause 35, which informs about the processing of the employee's employment data to establish the evolution of absences and manage performance, maintain records of staff absences, undertake disciplinary actions, etc.

Likewise, the contract includes a clause stating that the processing of her data in relation to her employment is carried out at its headquarters in Ireland, with the DPC being the main supervisory authority for the cross-border processing of personal data.

Looking at the employment contract, section 35: "data protection" states that data will be processed for any purpose related to the performance of the contract, with an additional appendix on data protection. Among the medical data that may be collected related to employment, it includes "medical certificates, details of absences, and sick leave."

6- Regarding the content of the letter sent to the claimant dated 28/07/2021, from Dublin, deciding not to impose a sanction, the following clarifications are requested:

- For the period from 17/06 to 30/07/2020, what information about the absence did you have before the interview? This is the reason why, if there was no justification, after the meeting, in "type of absence," it states "medical certificate not authorized."

It is responded that regarding that period of absence from work "it was detected that the period of leave was inconsistent not only with the medical certificate provided by the claimant but also with the information from the Social Security itself. The medical certificate provided by the claimant dated 18/06/2020 did not include a date for the next review. Furthermore, according to communication from the National Institute of Social Security (INSS), the claimant was issued a medical discharge dated 7/07/2020."

They attach a copy of documents 6, a copy of the medical report confirming temporary incapacity, company copy, date of the report 18/06/2020, common illness, and document 7, with medical discharge of 7/07/2020.

The respondent adds that "However, the claimant was absent from work until 30/07 following, detecting this period of unjustified absence."

- Confirm whether in the absence of 18/11/2020, you had a medical justification before the interview, as in the type of absence it states "medical justification."

It is responded that, although the letter sent to the claimant on 28/07/2021 mentioned a justification for illness or justified absence, it was detected that it was not actually a medical leave as such, precisely based on the justification that the claimant had presented before the interview.

It was simply an appointment for a consultation for treatment of (...) which is not included among the reasons provided by labor regulations for a medical leave."

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They provide document 8 (which includes a receipt for "consultation in this unit," and below it "Unit of (...)," dated 18/11/2020, along with the claimant's details and the hospital's logo), "which was an appointment, and hence it was deemed that this absence from work would not be a justified absence due to medical leave, and therefore it was legitimate for it to be part of the investigation during the disciplinary procedure."

□

In the absences, in the table, it states 19/01/2021, and in the literal section below, it states: "She was asked about her certified absence of March 19." The respondent is asked if that March 19 is an error and if it could actually refer to 19/01/2021 instead of March 19, and at the same time, to explain whether the certificate for that absence was already on record, and what was asked about it.

The respondent states that it is an error, indicating that "she was asked about the absence from work on January 19, 2021," upon detecting that the claimant had not submitted a medical certificate or a sick leave report, but rather a medical report dated 20/01/2021, which indicated that she was (...). They provide document number 9, a medical document "(...)," dated 20/01/2021.

"It was deemed that this absence from work would also not constitute a justified absence due to medical leave, and therefore it was legitimate for it to be part of the investigation during the disciplinary procedure."

□

In the same vein, if they already had a medical justification for the absence from 8 to 18/03/2021, what was questioned of the claimant?

In general, the respondent is requested to inform about the cases in which, if the certificate was already known to the respondent or was provided in the meeting, the reason for questioning the claimant, and information is also collected regarding the causes of the sick leave, a matter prohibited by the applicable legislation. (The letter states, "When you were asked about your certified sick leave on March 19, you answered that you were (...). When you were asked about your justified absences on the days 08-18 of March and 1-3 of June, your response was that you underwent surgery and that you had a (...)").

It is also requested that they inform which office and which employees can access the attendance justifications of the employees.

They responded that, although during that period the claimant had provided a medical justification that certified the work leave, "the right was exercised as in any other company, to have some control over work leaves at a stage prior to what is contemplated in article 20.4 of the Workers' Statute and within the framework of the aforementioned disciplinary procedure," stating the cited article:

"The employer may verify the health status of the worker that is alleged by the worker to justify their absences from work, through examination by medical personnel. The worker's refusal to such examinations may determine the suspension of any economic rights that may exist at the expense of the employer due to such situations."

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"In this case, before activating such a provision—which the company may resort to in cases of repeated absences from work, especially if some of them are unjustified—simply opted to ask the claimant to assess the decision of whether it was appropriate to request the employee to undergo a medical examination by a company doctor."

"The claimant could have refused to respond, although she answered voluntarily."

"After that, it was decided that a medical examination was not necessary."

It indicates that "at that time, the legislation on the matter was different from the current one, following the last modification of Royal Decree 625/2014, of 18/07, which regulates certain aspects of the management and control of temporary incapacity processes in the first three hundred sixty-five days of its declaration, which came into effect in April 2023. At that time, employees had a copy of the medical certificates, which they had to send to the employer within 3 days for the sick leave report and 24 hours for the return to work report.

Then, employees had to comply with that obligation, sending said documentation to ***APP.1 control/***APP.1 planning, that is, the departments that assign tasks to employees (flights to which they are assigned, standby periods, etc.); and therefore verify whether the absence is justified or not to reflect it in the corresponding records.

Normally, these certificates were kept by these same departments, unless they had doubts about the certificates, or other departments of the company (Human Resources, Inflight) had a legitimate reason to request them."

7-Form or procedure by which employees like the claimant, to justify absences as in this case, for medical reasons must notify them, to which entity? and to what location should it be sent?, people involved, and documents requested, and whether a receipt copy of what was sent is provided.

It stated that "We refer to what was stated in the previous response regarding the legislation in force at the time of the events, which differs from the current one."

"At that time, the employee—cabin crew member—first had to inform about their absence (so that the company could know if any (...) flight was short-staffed), and then send the sick leave reports to the ***APP.1 control / ***APP.1 planning departments of RYANAIR, to justify the absence.

In the case at hand, the requested documents were in accordance with the legislation in force at the time (sick leave and return to work reports). If an absence for medical reasons did not actually cause a

“sick leave,” the crew member could send a medical report that at least recommended a period of rest. We also refer to the explanations that can be found in the “Ryanair Work Guide.”

8-Verification of the date and time when the letter is placed by the “***APP.1” system to all recipients.

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It is stated that

***DATE.1

at 17:23, being eliminated the

***DATE.2

at 10:20, the same as was communicated to the DPC, although they do not currently retain any documentary record.

9 - Specification, providing a copy of the document from which the notification of the breach to the DPC on 19/11/2021 originates.

They state that the claimant did not submit any formal written complaint to the Data Protection Delegate of Ryanair, and that she became aware of the breach on 17/11/2021, through internal information, after the claimant raised the issue in another meeting with the Base Supervisor, three months after the breach occurred.

10 - Main uses of the “***APP.1” system in relation to cabin crew personnel and what other means of communication are available to them. Additionally, inform whether once the message has been read by the recipient, the file or text of the message can be deleted by the system administrator or by someone other than the recipient, and disappears from the recipient's inbox as if it had never existed. Indicate the security measures that the “***APP.1” system has regarding the sending of personal data.

The respondent replied that apart from what has already been reported, it adds that it is a communication channel through which Ryanair sends communications to cabin crew that must be read, with documents available to authenticated users and assigned directly to a specific user or team.

11 - Regarding the list of people to whom the letter was sent, via “***APP.1” (Excel sheet), the reason why the claimant does not appear as a recipient in the list, and the reason why the claimant's colleague, who is mentioned in the first fact of the initiation agreement, who sent the chat to the claimant, revealing to her that he had accessed the letter, does appear in the list, but as a person who did not open it (besides, days later, he confirmed that he no longer had it available in his inbox). Explain the reason why it is indicated that this person has not opened the letter in that list, if he was the one who sent it to the claimant.

The respondent replied that they have detected an error in the column of names that appeared in the list of people that accompanied the document 1 attached to the allegations to the initiation agreement. In this file, the ***APP.1 codes and the information regarding whether the communication was opened or not by the workers associated with said ***APP.1 codes were always correct, with only the column containing the names of the workers listed below being incorrect. Thus, we can confirm that both the claimant and her colleague received and opened the mentioned communication as shown in the list of people that was attached to our allegations to the initiation agreement.

They provide the list of people with the correction of errors as document 10. In it, it is indicated that the ***APP.1 code of the person who notifies the claimant is listed as notified among the 21 who were, specifically, at 17:39:51 on ***DATE.1, and the base of each person is indicated, cabin crew along with the ***APP.1 code and their first and last names.

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It is evident that the individuals to whom the letter was mistakenly sent were employees of Ryanair bases located in various countries, according to the IATA airport codes listed, for example, ALF AGP MAD bases in Spain or bases in Italy CRL OBRI, bases in the United Kingdom STNO, bases in Greece ATH, bases in Morocco Fed RA, considering that this reflects the nature of cross-border processing.

12-In their allegations, in the summary table of key dates, they indicate that the claimant submitted a complaint to the AEPD on 15/11/2021 “without attaching the prior correspondence between her and RYANAIR.” She is requested to provide such correspondence.

The respondent replied that what they wanted to emphasize was that the claimant, despite having a perfect opportunity, did not wish to inform the AEPD about how the DPD had informed her of the measures taken by RYANAIR in response to the breach, being aware that it had been referred to the DPC and that this closed the case. In the allegations, documents 4 to 7 contain the contact with the claimant on 19/11/2021 and 04/02/2022.

ELEVENTH: Along with the response to the requested evidence, the respondent stated:

- Reiterates the cross-border nature of the matter and that the main authority should be the DPC.
- Considers it difficult to comply with any requirement ordered by the AEPD based on the GDPR, as the responsibility for any decision regarding the processing lies with RYANAIR DAC, and furthermore, the competent authority to make those decisions would be the Irish one.
- The entity to which the procedure has been opened is not an establishment that has decision-making power, nor does it carry out data processing activities for RYANAIR employees. It reproduces the content of Recital 22 of the GDPR: “An establishment implies the effective and real exercise of an activity through stable modalities.”

To process a matter as a local authority, it must confirm that “there is an establishment within its jurisdiction,” that “the matter refers solely to the local establishment,” and “that the behavior of the data controller refers solely to processing in that jurisdiction.”

The CJEU, in its judgment of 01/10/2015, C-230/14, has stated that an establishment requires the necessary means for the provision of the specific services in question in the Member State concerned, and the exercise of activities in that Member State must take into account the specific economic activities and services provided by the establishment. When the AEPD sent to the DPC referred to the “Representation Office in Spain” of RYANAIR DAC, it is not relevant as it has no employees, does not make decisions, nor carries out data processing activities, lacking legal personality, created to meet legal requirements in tax and labor matters, primarily for the receipt of notifications.

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- The claim and facts of the procedure do not refer solely to Spanish stakeholders; their substantial impact would not be limited to Spain alone, thus it is deemed not to be a local case, as it is likely to affect or impact stakeholders in other Member States. The ***APP.1 system is managed by employees in Ireland and is used by employees from all over Europe. The alleged data security breach affected stakeholders from more than one State; the risks associated with the alleged data security breach would not occur solely in Spain.

“If the ***APP.1 system were only used in Spain and the claim referred to the content of a letter intended only for a Spanish person and sent solely to comply with Spanish legislation, the processing activities would substantially affect stakeholders only in Spain. This is not the case here.”

“RYANAIR introduced changes to its disciplinary communication processes and the security measures of the ***APP.1 system (which are used by all RYANAIR crew members in the EU), implemented based on decisions made by RYANAIR employees in Ireland. All decisions regarding the processing of data of employees and customers are made by Data Protection, Legal, HR, and other personnel based in Ireland.”

All these are sufficient elements to determine that the claim does not correspond to a local matter in Spain.

- RYANAIR informed the AEPD in its allegations to the initiation agreement that its headquarters is in Dublin, which is the central administration location for the data processing activities of the RYANAIR Group, being the data controller for the personal data of all employees of the RYANAIR GROUP, with all human resources issues for crew personnel working across Europe determined centrally in Ireland, with decisions transmitted by managers and supervisors to all RYANAIR employees throughout Europe. Such is the case with sanction letters to employees for disciplinary matters, which are issued by HR personnel in Dublin and sent to the corresponding Director of the European Base, who has "authority to make disciplinary decisions."

The DPC is the main supervisory authority for RYANAIR for cross-border processing activities in accordance with Article 56.1 of the GDPR. Article 56.6 of the GDPR states that the main supervisory authority will be the "single interlocutor" for cross-border processing carried out by the data controller, in this case, RYANAIR DAC.

- A matter that has already been investigated by another supervisory authority has been reopened, on which the Irish DPC has already ruled, having closed its investigation on 02/02/2022, which constitutes double jeopardy, despite the fact that the principle of non bis in idem prohibits the reopening of a matter that has already been investigated by another supervisory authority, while RYANAIR itself took certain measures such as changes in its labor communication processes and in the ***APP.1 system.

- The request for evidence that the AEPD should address the DPC to confirm whether it conducted an investigation and has already made any decision, and if so, whether the DPC decided not to impose a sanction on RYANAIR has been rejected due to omission, as the instructor did not specify anything.

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that not pronouncing on it results in defenselessness and irreparable harm to the respondent, violating articles 53.1.e), 53.2.b), 77.1, 77.2, and 77.3 of the LPACAP.

- "Furthermore, the evidence agreed ex officio by the Instructor, to request certain information and documentation from RYANAIR, is likely to violate the right of every party under investigation to the presumption of innocence and not to testify against oneself in a sanctioning procedure. This, therefore, constitutes a violation of article 53.2 b) LPACAP, in relation to article 24 of the Spanish Constitution, article 48 CEDFUE, and articles 6.2 and 6.3 CEDH," considering that, with the sanctioning file already initiated, any duty of cooperation ceases and it is noted that the file was initiated without having carried out any prior investigative actions. It is deemed that the request for evidence should be considered null according to article 47.1.a) of the LPACAP.

Nevertheless, it adds that it responds to the requested evidence.

SECOND: On 20/05/2024, the instructor issued a proposal for resolution, with the following text:

"That the Director of the Spanish Agency for Data Protection archives the sanctioning procedure initiated against RYANAIR DAC OFFICE REPRESENTATION SPAIN, with NIF W0071513F, for the violations of the following articles of the GDPR,

- 5.1.f),

- 32, and

- 5.1.c)"

It is not recorded that any allegations have been presented regarding the aforementioned proposal.

PROVEN FACTS

FIRST: The claimant, at least at the time of the events (***DATE.1), had an employment contract with RYANAIR DAC signed on 1/03/2019 in Dublin, performing duties as a cabin crew member on commercial flights. The contract includes:

- a section on "absence from work" with an obligation to inform the company if they will be absent due to illness or injury or any other reason, at least two hours before the start of the workday or shift, being required to comply with the company's reporting and certification obligations for absence, as provided in Appendix 1 which contains terms and conditions of work as part of the employment contract, and a section that specifies for its compliance, the obligation "from the first day of absence, to deliver or send

said medical certificate to the company, in accordance with the absence procedures in force

- Information about the existence of a disciplinary procedure established by the Company.
- Information that RYANAIR DAC will process the data provided for any purpose related to the performance of the agreement, as provided in the DATA PROTECTION APPENDIX attached to the contract, among others "medical certificates, details of absences and sick leave," noting among the purposes "to establish the evolution of absences and manage performance - maintain records of staff absences."

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SECOND: The respondent had a "RYANAIR WORK GUIDE" that contains general provisions regarding the employment relationship of RYANAIR employees with the company, and within it includes an ANNEX, the Internal Regulations of the Disciplinary Procedure (IRDP) of RYANAIR, approved by the Company's management and applicable to all cabin crew personnel of RYANAIR, "regardless of the country where their base is located" (all RYANAIR bases total 84, in 33 countries). The IRDP provides for its application for, among other things, unauthorized absence and lack of attendance. In the details of the procedure, it is stipulated that when there are absences due to illness or injury among its personnel, they must notify by phone, justifying it to the company with a self-certification form in writing available on the company's intranet site and a medical certificate, if applicable, on the first day of their absence, unless they are bedridden. These certificates must indicate the nature of their illness and their expected return date to work. ..."

The respondent may consider the absence as unauthorized if it deems "the reason for the absence unacceptable." For the application of the IRDP, the respondent has designated its own personnel, Directors and Heads of Department.

"In the disciplinary procedure, before taking action, there may be a preliminary investigation meeting attended by the immediate supervisor or direct superior in which "the facts are attempted to be established," "they explain their version of the facts and present any information they consider relevant to the investigation."

In the IRDP, it is indicated that it may end with a final written warning that will be the responsibility of the Head of the Department, in their absence another Senior Director together with the Human Resources Department of RYANAIR.

In the contract signed with the claimant, it is indicated that the disciplinary procedure detailed in the labor regulations will apply, which by signing, the claimant declares to have read and understood the labor rules and the "RYANAIR Work Guide." In the appendix on the protection of personal data, it is indicated, among other things, that data of the category of "medical certificates, details of absences and sick leave" may be collected and that one of the purposes of the processing is "to establish the evolution of absences and manage performance, for example, maintaining records of staff absences," it also provides for access to internal systems necessary for the proper performance of the employee's functions and their limits.

Appendix 1 of the contract, as an integral part of it, provides for the application of absence procedures in force at any given time, applicable to absences from work, reiterating that they must be justified from the first day with a medical certificate.

THIRD: The claimant filed a complaint with the AEPD on 15/11/2021, stating that she was summoned on 15/07/2021, to a meeting with her Base Supervisor (SB) of RYANAIR at Madrid Barajas Airport (the claimant's immediate supervisor, responsible for preparing the shift list, an employee of RYANAIR providing services in Madrid). In the meeting, she was asked questions about her absences from work in the year prior, which the claimant answered. The respondent provides a copy of the points noted by the convener of C/ Jorge Juan, 6

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that meeting regarding the issues raised by the claimant, concerning what happened to her on the various dates recorded in her absence records, which she considers incomplete or unjustified. The claimant provided her explanations, which include health data, such as, for example, that she began a treatment that had to be done in three sessions, that she was (...), that she had a (...) or a (...) with (...). In the notes at the end of the meeting invitation, it is indicated that “the notes from today’s meeting will be sent to your ‘European Base Manager,’ who happens to be ***POSITION.2 (***POSITION.2), a position that has the authority to make disciplinary decisions for staff from various RYANAIR bases, meaning it is a role that holds the competence to determine if there is any responsibility or of what type regarding the claimant. In its allegations, the respondent indicated that the data is entered from ***POSITION.2 into the letter that is sent to the claimant, dated 28/07/2021, signed by her. The RIPD establishes the mediation of RYANAIR personnel for the management of these procedures.

FOURTH: The claimant claims that she received the letter dated 28/07/2021 on ***DATE.1, through the application that the respondent uses to communicate with its staff, called ***APP.1, in which each user has a “***APP.1 code” or name by which they are identified, and which contained the health data she provided in her interview on 15/06/2021. She added that it has been disclosed to third parties, of which she was informed by a colleague that same day ***DATE.1, who sent her the letter in a screenshot. The letter, with the RYANAIR DAC logo, signed in Dublin, contains the SIX DATES or periods of absence of the claimant that were reviewed in the interview. In the records of the respondent, all were noted with “medical justification,” except for the period from 17/06 to 30/07/2020. The letter decides not to sanction the claimant and contains the responses to what happened during the periods in question, including the referred health data. In the evidence proceedings, it is noted that the respondent also requests information about medical leave processes, verifying that the respondent does not include the subsequent review or continuation of the leave in the confirmation report; in other cases, the review of absences occurs because the respondent considered that it might not be a medical justification, such as that of 18/11/2020, which was for a consultation appointment for treatment of (...), which the respondent estimates is not included as justification “for medical leave.” FIFTH: Following the transfer of the complaint by the AEPD to the DPC on 13/01/2022, its response was received on 16/06/2022, indicating that the matter is a case of processing by the local AEPD subsumed under Article 56.2 of the GDPR, for:

- 1) “While the main establishment of Ryanair is the DPC, it is established in Spain;” which perhaps means that the main establishment of RYANAIR is located in Ireland.
- 2) “The case specifically relates to the personal data of a former employee of a RYANAIR establishment in Spain, (and the matter specifically mentions the registered office at an address at Madrid Airport, Barajas, and established at c/Emili Grahit 17002 Girona) and the activities of an employee at their supervisory base in Madrid.”
- 3) The processing in question,” it is unknown which of them it specifically refers to, nor does it define what the (...) of processing referred to might be, as there is data collection at C/ Jorge Juan, 6.

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interview, its preservation, its record in the letter, its disclosure to third parties, and continues: “appears to have a substantial effect on one data subject in one country - Spain” which would be translated as “parece tener un efecto sustancial en un interesado en un país, España”,

- 1) “the data subject issues are very specifically related to their former employment as in RYANAIR’s establishment in Spain,” translated as “Las cuestiones del interesado están relacionadas muy específicamente con su empleo anterior, en el establecimiento de RYANAIR en España.”

SIXTH: Following the complaint, the defendant stated that they will not include any verbatim excerpts in the letter regarding collected medical data, and that they will limit themselves to preserving that information in a file note that the employee could request if they wished to contest the results letter, and they will introduce a warning box if multiple recipients are selected in the dispatches through ***APP.1, in addition to information to the employees.

SEVENTH: RYANAIR DAC, based in Dublin, which does not appear to have been aware of the filing of the complaint by the complainant with the AEPD on 15/11/2021, communicated to the DPC as a security breach in their personal data on 19/11/2021 the dissemination with the knowledge of third parties of the letter produced when the ***DATE.1 letter was sent to the complainant. In the communication, RYANAIR DAC stated that they had not been aware previously, as the employee who noticed and corrected by removing the letter from ***APP.1 on ***DATE.2 did not escalate the news of the breach to the competent department. In the breach form, among other circumstances, the following were noted:

- On ***DATE.1 at 17:23 hours (Spanish time), a letter was sent to the complainant containing a summary of that meeting, including specific details of health reasons that justified their various absences. Instead of sending the letter solely to the interested party in “***APP.1”, the letter was sent to another 50 Ryanair crew members. This occurred due to the “inadvertent highlighting of the names of the recipients on the first page of the cover by the employee who sent the letter.” It indicates that of the 21 recipients who opened the letter, they were all flight cabin crew, stationed at 15 different Ryanair bases: in Spain, Italy, the UK, Greece, or Portugal.
- It affects data subjects in more than one Member State or relates to the processing of activities in more than one Member State.
- Concerns the processing of personal data that takes place in the context of activities of an establishment of a controller in the Union, but that substantially affects or is likely to substantially affect individuals in more than one Member State.
- In the section to explain why they consider the organization to be the main establishment, including whether it is the headquarters in the EU and is the place where decisions are made regarding the purposes and means of personal data processing, they respond that “the breach relates to the processing of cabin crew members of RYANAIR. All data of cabin members are controlled by RYANAIR DAC established in Ireland, being the place where the central administration headquarters in the EU is located and where decisions regarding the purposes and means of processing are made and under the control of RYANAIR DAC.”

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EIGHTH: The DPC sent an email to RYANAIR on 02/02/2022 (reference number ***REFERENCIA.1), indicating that with the information provided and the actions taken regarding the case, it has concluded, and it reminds the importance of reviewing correspondence. It also states that the authority reserves the power to reopen the case for reexamination or as part of an investigation that may result in corrective measures, and it reminds the obligation to implement appropriate technical and organizational measures to ensure data security.

To the claimant, the respondent informed on 19/11/2021 that the DPC had been notified of the data security breach related to its communication to third parties of the letter, as well as that on 04/02/2022 the DPC concluded the communication and analysis of the notification.

NINTH: It is evidenced that the DPC sent a letter to the claimant on 17/03/2022 indicating that it had received her complaint submitted through the transfer made by the AEPD and that it will evaluate it, and invites her, if she has already contacted the data controller, to send any documents she may have for their evaluation.

TENTH: The respondent has stated throughout the entire procedure that GRUPO RYANAIR is headquartered in Dublin, and RYANAIR DAC, located in Ireland, is the main establishment concerning cross-border data processing activities, as it is the central administration location for the Group's data processing activities. It is also responsible for processing the personal data of employees and customers of the entire group, and that "The legal and HR functions of the group are also employed by RYANAIR DAC and located in Ireland." Considering that the DPC would be its main supervisory authority for cross-border processing activities in accordance with Article 56.1 and 6 of the GDPR, and the only interlocutor for the cross-border processing carried out by the data controller, which in this

case is RYANAIR DAC, since decisions regarding disciplinary processes and labor communication, and in general, regarding employee data are made by Ryanair DAC from Ireland, or reviewed and approved by it, and affect all Ryanair employees in the EU who use the system "****APP.1". It also notes that the changes following the management of the breach notified to the DPC were made by staff of RYANAIR DAC in Ireland.

LEGAL GROUNDS

I

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II Definitions and Application of the GDPR and Competent Supervisory Authority

The GDPR defines in its Article 4

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any (...) operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, restriction, erasure or destruction;

7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;

15) 'data concerning health': personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about his or her health status;

16) 'main establishment':

a) as regards a controller with establishments in more than one Member State, the place of its central administration in the Union, unless the decisions on the purposes and means of the processing are taken in another establishment of the controller in the Union and that other establishment has the power to implement such decisions, in which case the establishment that has taken such decisions shall be considered the main establishment;

Article 3 of the GDPR states:

"1. This Regulation applies to the processing of personal data in the context of the activities of an establishment of the controller or the processor in the Union, regardless of whether the processing takes place in the Union or not."

Article 4, number 23, of the GDPR defines "cross-border processing" as:

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- the processing of personal data carried out in the context of the activities of establishments in more than one Member State by a controller or a processor in the Union, if the controller or the processor is established in more than one Member State, or
- the processing of personal data carried out in the context of the activities of a single establishment of a controller or a processor in the Union, but which substantially affects or is likely to substantially affect data subjects in more than one Member State.

For its part, Article 56 of the GDPR establishes the following:

“1. Without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or of the only establishment of the controller or the processor shall be competent to act as the lead supervisory authority for cross-border processing carried out by that controller or processor in accordance with the procedure laid down in Article 60.

2. Notwithstanding the provisions of paragraph 1, each supervisory authority shall be competent to handle a complaint lodged with it or an alleged infringement of this Regulation, in the event that it relates solely to an establishment situated in its Member State or solely substantially affects data subjects in its Member State.

3. In the cases referred to in paragraph 2 of this Article, the supervisory authority shall inform the lead supervisory authority without delay. Within three weeks of being informed, the lead supervisory authority shall decide whether or not to handle the case in accordance with the procedure laid down in Article 60, taking into account whether there is an establishment of the controller or processor in the Member State of the supervisory authority that has informed it.”

Regarding the entity being complained about, Order EHA/451/2008 of 20/03 regulating the composition of the tax identification number of legal persons and entities without legal personality states that “The N key, which until now was assigned to non-resident entities, will be used to report on the nature of foreign entities, and a new key, W, is defined to report on the nature of the permanent establishment of a non-resident entity,” with the entity being complained about being RYANAIR D.A.C., REPRESENTATION OFFICE SPAIN with CIF/NIF W0071513F.

Furthermore, it should be noted that according to Recital (22) “Any processing of personal data in the context of the activities of an establishment of a controller or a processor in the Union must be carried out in accordance with this Regulation, regardless of whether the processing takes place in the Union. An establishment implies the effective and real exercise of an activity through stable modalities. The legal form that such modalities take, whether a branch or a subsidiary with legal personality, is not the determining factor in this regard.”

In this case, despite the unknown potential processing that may be carried out, if any, by the establishment of RYANAIR in Spain, which according to the entity being complained about does not carry out any, being merely an established contact system, it is not evidenced that the aforementioned establishment of RYANAIR in Spain carries out processing related to management.

of disciplinary matters in labor relations, nor of treatments aimed at formalizing the processing of the communication of such resolutions once adopted. On the contrary, there are indications that these are carried out at the main establishment of the defendant in Dublin, Ireland. Not only are their statements consistent, but this also arises from the model of contract signed with the defendant and from the interpretation of its content, as well as from the notification of the breach to the Irish authority that was made by RYANAIR established in Dublin.

Regarding the thesis proposed by the claimant, estimating that the responsible establishment for labor relations is located in Girona, arguing that the regulation of the European Commission Regulation 8/2008 applies, concerning common administrative procedures applicable to commercial air transport,

which defines the bases, this is an insufficient argument, as the concept of the data controller is an autonomous concept specific to European Union law, and is defined in the GDPR in its Article 4.7. The law contained in the GDPR advocates for effective, coherent, and homogeneous application within the EU.

In this case, the fact that the claimant, hired by RYANAIR based in Dublin, resides or is a national of Spain, and has submitted their claim to this AEPD, does not turn the processing into a case of local impact, as the procedure for investigating absences from work established for all RYANAIR staff can affect any employee located in any Member State.

Regarding the document received, a response from the "Data Protection Commission" dated 16/06/2022, indicates, after citing Article 56.2 of the GDPR that:

- "They have reviewed the claim and it must be returned for local processing by the Spanish authority. The resolution has been made by:

- 1) "While the main establishment of Ryanair is the DPC, it is established in Spain;"
- 2) "The case specifically relates to the personal data of a former employee of a RYANAIR establishment in Spain, (and the matter specifically mentions the registered office at an address at Madrid Barajas Airport, and established at c/Emili Grahit 17002 Girona) and the activities of an employee at their Madrid supervisory base."

However, the claimant employee provides services for RYANAIR DAC established in Dublin, with whom they sign the contract, even though their base is in Spain, and on the other hand, something similar occurs with the Base Supervisor, who is also an employee of the establishment in Dublin, a person who, in the exercise of the functions assigned to them by RYANAIR, within the framework of the disciplinary procedure that has been established and submitted, was the one who conducted the interview with the claimant on 15/06/2021.

The role played by the RYANAIR establishment in Spain, according to the allegations received, is merely a mailbox for the purpose of receiving notifications, emphasizing that it does not play any role in matters related to the activities concerning the subject matter of

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the claim, since the decisions to develop the procedures, include clauses on employee data processing in the contracts, prepare the "RYANAIR Labor Guide," and manage absences at work and their control, are made by the Dublin headquarters. It is noted that the contract provided by the respondent regarding the claimant contains such references and content explicitly, and it is reiterated that it was signed in Dublin.

3) In the last paragraph of reasoning in the DPC's response, it concludes that "The processing in question," but it is unclear which of them it specifically refers to, nor does it define what the (...) of processing referred to could be, as there are the following: the collection of data in the interview, its retention, its mention in the letter, its disclosure to third parties. The document continues stating: "appears to have a substantial effect on one data subject in one country - Spain," which would be translated as "seems to have a substantial effect on one data subject in one country, Spain," when the literal text of Article 56.2 of the mentioned GDPR states: "only substantially affects data subjects in their member state." However, in this case, the labor procedures and the content of the contracts entered into by RYANAIR are established by the Dublin establishment, particularly the procedures for controlling absences from work, and the effects apply to any country where RYANAIR has employees, affecting all of them; therefore, it does not only affect data subjects in a member state.

4) Finally, the DPC's response indicates:

"the data subject issues are very specifically related to their former employment as in RYANAIR's establishment in Spain," translated as: "The issues of the data subject are very specifically related to their previous employment at RYANAIR's establishment in Spain."

However, from the processing of this procedure, it is evident that the establishment located in Spain does not exercise any power of disposition or effective control in the context of the processing actions

subject to the claim.

III

In this case, it is not about controlling the absence from work when it occurs, but rather the records of the employee's past attendances (cabin crew) as a review, looking back one year, a procedure in which the employee, the claimant, is called under the process that the employer refers to as "disciplinary."

On this particular matter, the following should be indicated:

- The respondent has stated that the effects of any prior investigations it may conduct for controlling employee absences are included in the employees' contracts. This is a regulated procedure that employees can be aware of as it is contained in the contract. Thus, it follows from the above that these provisions are likely to affect not only the claimant but any employee of RYANAIR. The processing of personnel matters is handled by the establishment in Dublin, Ireland, without any apparent intervention from the establishment in Spain.
- The data processing is carried out in accordance with the procedures established by the Dublin establishment, which decides on the collection and incorporation of the data.

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information stated by the claimant in the procedure, as well as incorporate that data into its systems. The letter received by the claimant is prepared and sent by the aforementioned entity through its own staff at RYANAIR DAC, based in Dublin, with the purpose of documenting a non-agreement to initiate disciplinary proceedings against the claimant.

RYANAIR DAC, headquartered in Dublin, signed an employment contract with the claimant that included the procedure for justifying absences. Additionally, it has established management procedures reflected in its "RYANAIR Work Guide," which includes the INTERNAL REGULATIONS for disciplinary procedures, both documents which the claimant acknowledges having knowledge of by signing. Such employment documents do not have a scope limited to a single country, that is, to Spain exclusively, but apply to all employees who have certain functions, as stated by the respondent in their response to the evidence presented, that the RIPD applied to all cabin crew personnel, regardless of the country where their base was located, 84 bases in 33 countries.

In accordance with the above, a lack of passive legitimacy of the respondent regarding the alleged infringements is noted, resulting in the filing of the procedure without prejudice to its referral to the DPC.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the sanctioning procedure initiated against RYANAIR DAC OFFICE

REPRESENTATION SPAIN, with NIF W0071513F for the infringements of the following articles of the GDPR,

- 5.1.f),
- 32, and
- 5.1.c)

SECOND: TO NOTIFY this resolution to RYANAIR DAC OFFICE REPRESENTATION SPAIN.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the

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Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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